



CHAPTER xxxii

An Act to provide for the transfer to the Bucks Water Board of the water undertakings of the Marlow Water Company and the councils of the boroughs of Brackley and High Wycombe of the urban districts of Bletchley Newport Pagnell and Wolverton and of the rural districts of Brackley Newport Pagnell Towcester and Wycombe to alter the constitution of the Board to confer further powers upon and extend the limits of supply of the Board and for other purposes. [16th July 1959.]

WHEREAS—

(1) The Bucks Water Board (hereinafter referred to as “the Board”) were constituted by the Bucks Water Act 1937 and are authorised by the Bucks Water Acts and Orders 1937 to 1957 to supply water and are under those Acts and Orders supplying water within an area which comprises the borough of Aylesbury the rural districts of Aylesbury Buckingham Wing and Winslow parts of the rural districts of Amersham and Wycombe in the county of Buckingham and the urban district of Tring and part of the rural district of Berkhamsted in the county of Hertford:

(2) The Marlow Water Company (hereinafter referred to as “the company”) were incorporated by the Marlow Water Act 1935 and under the Marlow Water Act and Order 1935 and 1952 are authorised to supply and are supplying water within an area which comprises the urban district of Marlow parts of the borough of High Wycombe the urban district of Beaconsfield and the rural district of Wycombe in the county of Buckingham and part of the rural district of Cookham in the county of Berks:

(3) The mayor aldermen and burgesses of the borough of High Wycombe (hereinafter referred to as "the corporation") in pursuance of statutory powers vested in them in that behalf are authorised to supply and are supplying water within an area which comprises the greater part of that borough and part of the urban district of Beaconsfield and of the rural district of Wycombe:

(4) The councils of the borough of Brackley of the urban districts of Bletchley Newport Pagnell and Wolverton and of the rural districts of Brackley Newport Pagnell Towcester and Wycombe (hereinafter referred to as "the councils") in pursuance of their general powers under the Public Health Act 1936 supply water within the whole or parts of their respective borough and districts:

(5) The areas supplied with water by the company the corporation and the councils adjoin or are in close proximity to the area within which the Board are authorised to supply water:

(6) It is expedient to provide for the transfer to the Board of the undertaking of the company and the water undertakings of the corporation and the councils:

(7) It is expedient that the limits for the supply of water by the Board should be extended to include the said areas supplied with water by the company the corporation and the councils:

(8) It is expedient that the other provisions contained in this Act should be enacted:

(9) The purposes of this Act cannot be effected without the authority of Parliament:

(10) In relation to the promotion of the Bill for this Act the Board have complied with the requirements of section 128 (Power for Board to apply for further powers) of the Bucks Water Act 1937:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I

PRELIMINARY

Short and collective titles. 1.—(1) This Act may be cited as the Bucks Water Board Act 1959.

(2) The Bucks Water Acts and Orders 1937 to 1957 and this Act may be cited together as the Bucks Water Acts and Orders 1937 to 1959.

2. This Act is divided into Parts as follows:—

PART I
—cont.

Part I.—Preliminary.

Part II.—Reconstitution of Board and provisions consequent thereon. Division of Act into Parts.

Part III.—Transfer of undertakings.

Part IV.—Birchmoor Water Committee.

Part V.—Supply of water etc.

Part VI.—Finance and miscellaneous.

3.—(1) The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are incorporated with this Act with the following exceptions and modification:— Incorporation of Lands Clauses Acts.

(a) Sections 127 to 131 of the Lands Clauses Consolidation Act 1845 (which relate to the sale of superfluous lands) and sections 150 and 151 of that Act (which relate to access to the special Act) are not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

(2) In the construction of the provisions of the Lands Clauses Acts incorporated with this Act the expression “the promoters of the undertaking” “the undertakers” and “the company” mean the Board.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

(2) In this Act except where it is otherwise stated or the subject or context otherwise requires—

“the Act of 1933” means the Local Government Act 1933;

“the Act of 1937” means the Bucks Water Act 1937;

“the Act of 1945” means the Water Act 1945;

“the added limits” means the areas described in the First Schedule to this Act;

“the Ampthill Council” means the council of the rural district of Ampthill and includes any statutory water undertakers at any time authorised to supply water in the said rural district of Ampthill;

“the appointed day” means the first day of January nineteen hundred and sixty;

PART I
—cont.

“ the Birchmoor works ” means the waterworks comprised in so much of the undertaking of the council of the rural district of Newport Pagnell and of the water undertaking of the Ampthill Council as is managed by the Birchmoor Water Supply and Drainage Joint Committee of the said councils formed under section 91 of the Act of 1933 and includes—

(a) the well boreholes pumping station and treatment works at Birchmoor in the parish of Aspley Guise in the rural district of Ampthill in the county of Bedford;

(b) the two service reservoirs at Bow Brickhill Heath in the parish of Bow Brickhill in the rural district of Newport Pagnell in the county of Buckingham;

(c) mains from the said well boreholes pumping station and treatment works to the said reservoirs and mains and pipes giving a supply of water from the said reservoirs;

“ the Board ” means the Bucks Water Board;

“ the clerk ” and “ the treasurer ” mean respectively the clerk and the treasurer of the Board;

“ the committee ” means the Birchmoor Water Committee constituted by section 33 (Birchmoor Water Committee) of this Act;

“ the company ” means the Marlow Water Company;

“ constituent authority ” means any county council and any council empowered by this Act to appoint a member of the Board;

“ council ” means the council of a borough urban district or rural district;

“ the county council ” means the county council of the administrative county of Buckingham;

“ the day of transfer ” means the first day of April nineteen hundred and sixty;

“ enactment ” means any Act whether public general or local or any order made thereunder or any provision in any Act or in any such order;

“ the existing limits ” means the limits within which the Board were immediately before the passing of this Act authorised to supply water;

“ the limits of supply ” means the limits within which the Board are for the time being authorised to supply water;

“the local Acts” means the Act of 1937 and the Bucks Water Board Act 1946;

“the Minister” means the Minister of Housing and Local Government;

“undertaking” has the following meanings:—

(a) as regards the undertaking of the company the expression means the undertaking of the company as existing on the day of transfer and subject to the provisions of this Act includes—

(i) all the lands buildings water works water sources of supply machinery mains pipes meters plant spare parts tools apparatus vehicles stores and furniture;

(ii) all investments securities funds reserves surplus profits book debts consumers’ deposits bank balances and cash;

(iii) all registers books of account maps plans specifications engineering reports and other documents;

(iv) all rights powers easements interests privileges and other real and personal property assets and effects then vested in or belonging to the company or to which the company shall then be entitled (whether they shall be in the possession of the company or in that of their solicitors agents resident or consulting engineers or other persons);

(v) the benefit of all contracts in force on the day of transfer but subject to any obligations of the company thereunder;

but does not include—

(vi) the directors’ minute books and all books and papers relating exclusively to the shareholders in and the constitution of the company which it may be necessary for the company to retain for the purpose of the winding up of the company;

(vii) any liabilities and obligations in respect of share capital and moneys raised on mortgage or by the creation and issue of debenture stock;

(viii) such a sum of money as is required to pay any dividends (less income tax) declared by the directors of the company in pursuance of section 17 (Payment of final dividend and interest) of this Act and not paid before the day of transfer and any interest (less income tax) on any mortgages or

PART I
—cont.

debenture stock which the directors may pay before the day of transfer in pursuance of the said section but which has not then been paid;

(b) as regards the undertaking of a council transferred by this Act the expression means the water undertaking of that council as existing on the day of transfer and subject to the provisions of this Act includes—

(i) all the lands buildings water works water sources of supply machinery mains pipes meters plant spare parts tools apparatus vehicles stores furniture and other real and personal property assets and effects rights powers privileges liabilities and obligations held or used by the council for or in relation to their water undertaking immediately before the day of transfer or to which they were then subject for or in relation to that undertaking;

(ii) the benefit of all contracts in force on the day of transfer in respect of the said undertaking subject to any obligations thereunder;

(iii) all registers books of account maps plans specifications engineering reports and other documents relating solely to the said undertaking;

(iv) in relation to the undertaking of the council of the rural district of Newport Pagnell the interest of that council in the Birchmoor works;

but does not include—

(v) any funds money or securities for money of the council whether invested or in hand other than money or securities for money representing the unexpended balance of any sum borrowed by the council for the purposes of their water undertaking and other than returnable deposits;

(vi) any liabilities or obligations in respect of any sum borrowed as aforesaid (including a bank overdraft) except as provided by this Act; or

(vii) any liability for private supplies to any premises or village or any obligation to maintain the supply or purity of water from any private well or other source of supply or any public pumps wells cisterns reservoirs conduits or other works vested in or utilised by any council by section 124 of the Public Health Act 1936 or in or by any parish council by section 125 of the Public Health Act 1936;

“ year ” means the year commencing on the first day of April.

(3) The provisions of subsection (1) of section 295 of the Act of 1933 (which provides as to the doing of things which fall to be done on Sundays and public holidays) shall apply for the purposes of this Act as if for the reference therein to the Act of 1933 there were substituted a reference to this Act.

PART I
—cont.

(4) Except where the context otherwise requires references in this Act to any enactment shall be construed as references to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

RECONSTITUTION OF BOARD AND PROVISIONS CONSEQUENT THEREON

5. On and from the appointed day—

Reconstitution
of Board.

- (1) the number of members of the Board shall be increased from twenty-five to thirty-two and on and after that day the constitution of the Board shall (subject to alteration by the Minister as provided in the Act of 1937) be as follows:—

Eight members to be appointed by the county council;

Two members to be appointed by the council of the borough of Aylesbury;

One member to be appointed by the council of the borough of Brackley;

Four members to be appointed by the council of the borough of High Wycombe;

One member to be appointed by the council of the urban district of Bletchley;

One member to be appointed by the council of the urban district of Marlow;

One member to be appointed by the council of the urban district of Newport Pagnell;

One member to be appointed by the council of the urban district of Tring;

One member to be appointed by the council of the urban district of Wolverton;

Two members to be appointed by the council of the rural district of Aylesbury;

PART II
—cont.

One member to be appointed by the council of the rural district of Berkhamsted;

One member to be appointed by the council of the rural district of Brackley;

One member to be appointed by the council of the rural district of Buckingham;

One member to be appointed by the council of the rural district of Newport Pagnell;

One member to be appointed by the council of the rural district of Towcester;

One member to be appointed by the council of the rural district of Wing;

One member to be appointed by the council of the rural district of Winslow;

Three members to be appointed by the council of the rural district of Wycombe;

- (2) section 4 (Interpretation) of the Act of 1937 shall have effect as if for the definition of “the constituent authorities” there were substituted the following definition:—

“ ‘the constituent authorities’ means the councils mentioned in paragraph (1) of section 5 (Reconstitution of Board) of the Bucks Water Board Act 1959 ”;

- (3) section 6 (Constitution of Board) section 7 (Appointment of members of Board) and section 13 (Certificate of appointment of members) of the Act of 1937 shall be and are hereby repealed;

- (4) section 23 (Quorum of meetings) of the Act of 1937 shall have effect as if the words “not less than nine” were substituted for the words “not less than seven”;

- (5) section 141 (Cesser of powers of constituent authorities to supply water) of the Act of 1937 shall have effect as if the words “the Aylesbury Council the Buckingham Council the Wing Council and the Winslow Council” were substituted for the words “the constituent authorities”.

Appointment
of members of
Board.

6.—(1) Each constituent authority shall at a meeting to be held before the appointed day appoint the number of members of the Board to be appointed by them and the members so

appointed shall come into office on the appointed day and shall subject to the provisions of this Act continue in office until the thirtieth day of April nineteen hundred and sixty-three.

PART II
—cont.

(2) The members of the Board in office immediately before the appointed day shall unless reappointed under subsection (1) of this section cease to hold office on the appointed day.

(3) The date of retirement from office of members of the Board other than the members appointed under subsection (1) of this section shall be the thirtieth day of April in every third year after nineteen hundred and sixty-three.

(4) Every vacancy other than a casual vacancy in the representation of a constituent authority on the Board shall be filled by that constituent authority on or before the date on which the vacancy will occur and every member appointed under this subsection shall come into office on the first day of May.

(5) Whenever an appointment of a member of the Board has been made the clerk of the constituent authority by whom the appointment was made shall forthwith certify the appointment and transmit the certificate to the clerk to the Board.

(6) A member ceasing to hold office as a member of the Board shall unless he is not qualified or is disqualified be eligible for reappointment.

7. The first meeting of the Board as reconstituted by this Act shall be convened by the clerk as soon as may be after the expiration of one month from the appointed day.

First
meeting of
reconstituted
Board.

PART III

TRANSFER OF UNDERTAKINGS

8.—(1) On the day of transfer the following undertakings shall by virtue of this Act be transferred to and vest in the Board namely the undertakings of the councils of the boroughs of Brackley and High Wycombe of the urban districts of Bletchley Newport Pagnell and Wolverton and of the rural districts of Brackley Newport Pagnell Towcester and Wycombe:

Transfer of
local
authorities'
undertakings.

Provided that the Caldecote undertaking shall not be transferred to and vested in the Board.

(2) (a) Subject to the provisions of this Act the Board shall as consideration for the transfer of each of the undertakings referred to in subsection (1) of this section in the year commencing on the day of transfer and in every year thereafter repay to the council

PART III
—cont.

from whom the transfer is made the amount which in pursuance of arrangements in force immediately before the appointed day for the redemption of loans and the payment of interest thereon would but for this Act have fallen on or after the day of transfer to be debited in the accounts of the undertaking of that council for that year in respect of money borrowed in respect of the undertaking.

(b) In calculating the amount that would have fallen to be debited as aforesaid—

- (i) there shall be deducted therefrom any sum received by the council under the Rural Water Supplies and Sewerage Acts 1944 to 1955; and
- (ii) account shall be taken in respect of any loan of the income earned by any sinking fund established for the repayment of the loan.

(3) Any sum payable under the foregoing provisions of this section shall unless otherwise agreed be paid not later than the day on which the amounts referred to in subsection (2) of this section become payable by the said councils.

(4) Any payment made by the Board under subsection (2) of this section in respect of the liability for the redemption of a loan (or the repayment of an advance) shall be deemed to be a capital payment and any other such payments shall be deemed to be an annual payment.

(5) The Board shall also pay to each of the councils referred to in subsection (1) of this section as part of the consideration for the transfer—

- (a) an amount equal to the then current value of all expendable stores which immediately before the day of transfer were held on revenue account by that council in respect of their undertaking and which by this Act are transferred to the Board; and
- (b) the amount of any capital expenditure incurred by that council for the purpose of their undertaking or part thereof not defrayed from loan moneys for which statutory borrowing powers could and it is anticipated would but for the transfer have been conferred.

(6) Any question which may arise under this section between the Board and a council shall be determined by arbitration.

(7) In this section “the Caldecote undertaking” means so much of the undertaking of the council of the urban district of Newport Pagnell situate in their district as comprises—

- (a) land containing 20·899 acres or thereabouts being enclosure numbered 48 on the 1/2500 Ordnance map of

Buckinghamshire sheet XV.12 (1925 edition) bounded on the south and west by the river Lovat (or Ouzel) on the north by Caldecote Lane and on the east by enclosures numbered 139 and 140 on the said map;

- (b) land containing 5.522 acres or thereabouts being enclosure numbered 47 on the said sheet bounded on the north by the river Lovat (or Ouzel) on the east by the boundary of the said urban district and on the south and west by enclosure numbered 44 on the said map;
- (c) land containing 0.359 acre or thereabouts being a part of enclosure numbered 82 on the said sheet together with the Caldecote water treatment and pumping station thereon;
- (d) land containing 0.187 acre or thereabouts being a part of the said enclosure numbered 82 containing the lime drying beds used in connection with the Caldecote water treatment works.

9. Notwithstanding the foregoing provisions of this Part of this Act the Board may with the consent of the lender agree with a council whose undertaking is by this Act transferred to them for the transfer to the Board by that council of the liability in respect of any outstanding loan to that council in respect of their undertaking and from the date upon which any such transfer takes effect all liability in respect of the loan so transferred shall be borne by the Board.

10.—(1) In any case in which an undertaking of a council transferred by virtue of this Act includes—

- (a) an asset which is held or used in part for the purposes of the undertaking and in part for other purposes of the council; or
- (b) an asset which forms part only of a building or other property of the council;

an agreement may before the day of transfer be entered into between the council and the Board in relation to that asset and without prejudice to the generality of this provision any such agreement may—

- (i) provide for the exclusion of the asset from the transfer;
- (ii) provide for the inclusion in the transfer of other property of the council in connection with which the asset is used;
- (iii) provide for the joint user of the asset;

PART III
—cont.

- (iv) provide where necessary for the granting of easements or rights over or in respect of land to be transferred or land to be retained by the council; and
- (v) state the terms and conditions of such agreement (including payments to be made in respect thereof) and (if thought fit) the period for which it shall operate.

(2) Where any such agreement provides for the exclusion of the asset from the transfer or for the joint user of the asset such asset shall not be transferred to the Board by virtue of this Act.

(3) Where any such agreement provides for the inclusion in the transfer of other property of the council in connection with which the said asset is used such property shall on the day of transfer or on a date stated in the agreement be transferred to the Board by virtue of this Act.

(4) Where under subsection (1) of this section a question has arisen between the council and the Board whether (a) an asset should be excluded from the transfer or (b) there should be included in the transfer other property of the council in connection with which the said asset is used or (c) the said asset should be used jointly and the matter has not been agreed between the council and the Board before the day of transfer the said asset shall not on that day be transferred to the Board but may be used by the Board on such terms as may be agreed between the council and the Board or failing agreement as may subsequently be determined by arbitration and in such a case—

(a) if it is afterwards agreed or determined by arbitration that the said asset shall be excluded from the transfer or shall be used jointly by the council and the Board subsection (2) of this section shall apply as if it had been so agreed before the day of transfer;

(b) if it is afterwards agreed or determined by arbitration that the said asset shall be included in the transfer or that there shall be included in the transfer other property of the council in connection with which the said asset is used the said asset or the said asset and such other property shall be transferred to the Board by virtue of this Act on a date stated in such agreement or in the award of the arbitrator (as the case may be).

(5) In default of agreement between the council and the Board on any matter referred to in this section the question shall be referred to arbitration and the award of the arbitrator may provide for any matter for which an agreement under this section might have provided.

(6) This section shall apply in relation to so much of the undertaking of the council of the rural district of Newport

Pagnell as comprises the interest of that council in the Birchmoor works as if any asset held or used in part for the purposes of the Birchmoor works and in part for other purposes of the Birchmoor Water Supply and Drainage Joint Committee or any asset which forms part only of a building or other property held or enjoyed by the said committee were an asset to which subsection (1) of this section applies and an agreement made before the day of transfer may be entered into between the Board and the Newport Pagnell Rural District Council or the Ampthill Council or the said committee as the case may be in relation thereto.

PART III
—cont.

11.—(1) A council whose undertaking is transferred by this Act shall be entitled to and may recover all rates rents charges profits and sums of money and shall discharge and pay all debts outgoings and liabilities in respect of such undertaking which may accrue due up to or shall have accrued due or become payable before the day of transfer and the Board shall be entitled to and may recover all rates rents charges profits and sums of money and shall discharge and pay all debts outgoings and liabilities in respect of such undertaking which may accrue due or become payable on or after that day and where necessary for the purpose of this section all such revenues and outgoings shall be apportioned between the said council and the Board:

As to receipts
and debts to
day of
transfer.

Provided that so much of the rates rents charges profits and sums of money received by any such council and so much of the outgoings discharged by them as is attributable to any period subsequent to the day of transfer shall be paid by them to the Board or (as the case may be) shall be paid by the Board to the said council and so much of such rates rents charges profits and sums of money received by the Board in respect of such undertaking and so much of the outgoings discharged by them as is attributable to the period prior to the day of transfer shall be paid by the Board to such council or (as the case may be) shall be repaid to the Board by such council.

(2) Any question which may arise under this section between any such council and the Board shall be determined by arbitration.

(3) A council whose undertaking is transferred by this Act and the Board may enter into and carry into effect agreements relating to the matters referred to in this section.

12.—(1) On the day of transfer the undertaking of the company shall by virtue of this Act be transferred to and vest in the Board.

Transfer of
company's
undertaking.

PART III
—cont.

(2) The price or consideration to be paid by the Board to the company for the transfer of their undertaking shall be such sum as may be agreed between the Board and the company or as failing agreement shall be determined by arbitration to be the sum which the undertaking of the company might have been expected to realise if it were sold as a going concern on the day of transfer in the open market by a willing seller to a willing buyer.

Issue of stock
to company.

13. The price or consideration to be paid to the company for the transfer of their undertaking may by agreement between the Board and the company be satisfied in whole or in part by the issue by the Board to the company of stock or other securities under and in accordance with the provisions of the Act of 1933 and any regulations made thereunder.

Receipt for
consideration.

14. The receipt in writing of two directors of the company for any money stock or other security paid or delivered to the company shall effectually discharge the Board from the sum of money or the amount of the stock or other security which shall be acknowledged therein to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof and if from any cause the Board are unable to obtain any such receipt they may lodge the money stock or security in the Supreme Court in accordance with rules made under section 146 of the Supreme Court of Judicature (Consolidation) Act 1925 and a certificate given in accordance with those rules stating that the money stock or security has been so lodged shall have the same effect for the purposes of this and the next following section as the receipt of two directors of the company.

Evidence of
transfer.

15. The production of a copy of this Act printed by the Queen's Printer together with a receipt for the price or consideration for the purchase of the undertaking of the company purporting to be signed by two directors of the company shall (unless it be proved that the price or consideration has not been paid) be conclusive evidence in all courts and proceedings of the transfer of the undertaking of the company to the Board and its vesting in them.

Further
provisions as
to transfer of
company's
undertaking.

16.—(1) The Board shall pay and discharge all debts and liabilities of the company (other than any liabilities in respect of share capital and moneys raised on mortgage or by the creation and issue of debenture stock of the company in respect of the undertaking transferred) which are outstanding on the day of transfer.

(2) All rates rents charges and other sums and debts at the day of transfer due and payable or accruing due and payable to the

company shall be payable to and may be collected recovered and enforced by the Board in the same manner and with and by the same benefits and processes as those with and by which the company might have collected recovered and enforced them and shall belong to the Board for their own benefit.

PART III
—cont.

(3) Any question which may arise under this section between the company and the Board shall be determined by arbitration.

(4) The Board and the company may enter into and carry into effect agreements relating to the matters referred to in this section.

17.—(1) (a) The directors of the company may without first obtaining the sanction of the company in general meeting declare and pay out of moneys available for the purpose in respect of the period ending on the day immediately preceding the day of transfer (being a period of less than fifteen months) dividends (less income tax) at such rates per centum per annum as together with the rate of any dividend already declared in respect of the said period will not exceed—

Payment of
final dividend
and interest.

(i) in the case of preference shares of the company the preferential rate of dividend per centum per annum attached thereto;

(ii) in the case of ordinary shares of the company the authorised rate of dividend per annum.

(b) Any dividends authorised by this subsection may be declared before the day of transfer and paid either before or after that day.

(c) In this subsection “the authorised rate of dividend per annum” means the rate per annum paid by the company for the period of twelve months last preceding the period in respect of which the dividends are paid under this subsection.

(2) The directors of the company may also pay interest at the appropriate rate or rates on any mortgages or debenture stock of the company in respect of any period ending on the day immediately preceding the day of transfer for which interest has not previously been paid notwithstanding payment of such interest is not due until after the appointed day.

18.—(1) From and after the day of transfer the company shall subsist only for the purposes of—

Winding up
and
dissolution of
company.

(a) receiving and recovering the money or securities to which they or the shareholders of the company are entitled under this Act;

PART III
—cont.

- (b) paying to the holders of any mortgages or debenture stock of the company any interest thereon which in pursuance of section 17 (Payment of final dividend and interest) of this Act the directors have decided to pay but which was not paid before the day of transfer;
- (c) distributing to the shareholders any dividends which although declared in pursuance of the said section 17 were not paid before the day of transfer; and
- (d) winding up their affairs and carrying into effect the purposes of this Act so far as they relate to the company;

and the directors of the company who are in office at the day of transfer and the survivor or survivors of those directors shall continue without re-election to hold office and those directors or the majority of them or (if a liquidator of the company be duly appointed) the liquidator shall have power and authority to take with respect to the company all proceedings necessary for carrying into effect the purposes of this section.

(2) If the number of directors of the company be reduced by death resignation or otherwise below two before the completion of the winding up of the company or the appointment of a liquidator thereof the continuing director shall from time to time appoint a person who immediately prior to the day of transfer was a shareholder of the company to fill the vacancy so caused.

(3) As soon as may be after the day of transfer the directors of the company or (if a liquidator has been duly appointed) the liquidator shall proceed to wind up the affairs of the company and shall distribute the moneys payable to them by the Board and the certificates of securities of the Board as the case may require to and among the several persons who on the day of transfer are the registered holders of shares mortgages or debenture stock of the company or their respective executors administrators and assigns in accordance with this section.

(4) The directors of the company shall prepare a scheme for the distribution of the money or securities to be distributed to the holders of shares in the company and of mortgages and debenture stock of the company (hereinafter referred to as "the holders") and the following provisions shall have effect:—

- (a) The directors shall send by post a copy of the scheme to all the holders at their last known or usual addresses together with a notice summoning a meeting of the holders to consider the scheme at a place and time to be named in the notice the time being not earlier than seven days nor later than twenty-one days after the circulation of the scheme;

- (b) The scheme shall be submitted to the meeting for approval:

PART III
—cont.

Provided that unless the scheme is approved by holders representing not less than three-fourths in value of the shares mortgages or debenture stock of each class voting thereat in person or by proxy it shall be referred to an arbitrator to be appointed by the President of the Law Society who shall settle the scheme;

- (c) The scheme approved at the meeting or if referred to an arbitrator settled by him shall be binding on all the holders.

(5) In this section the expression "securities" means the stock or other securities issued by the Board under section 13 (Issue of stock to company) of this Act.

(6) The company shall on publication in a local newspaper circulating in the administrative county of Buckingham of a notice signed by two or more directors or by the liquidator and certifying that all the provisions of this Act relating to the company have been complied with be dissolved.

(7) In case the directors of the company are or the liquidator is for six months after the day of transfer unable after diligent inquiry to ascertain the person to whom any money or certificate of securities ought to be paid or delivered or who can give an effectual receipt for it the directors or the liquidator may pay the money or securities into court as if it belonged to a trust of which they or he were trustees or a trustee.

(8) The Board shall pay the reasonable costs and expenses incurred in the winding up of the company and the amount of such costs and expenses shall failing agreement be settled by arbitration.

19.—(1) Subject to the provisions of this section any sums of money paid to the company or the holders of shares of the company and any stock or other securities of the Board issued to the said holders in pursuance of this Act shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in on or subject to which the said shares of the company were held immediately before the day of transfer and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting the shares and every such deed will instrument or disposition shall take effect with reference to the whole or a proportionate part (as the case may be) of the sum of money or of the stock of the Board.

Substituted
securities to
be held in
same rights.

PART III
—cont.

(2) Any bequest of or any covenant or provision of any deed will or other instrument relating to any specific number of or nominal amount of shares of the company shall be held to apply to the sum of cash or security of the Board which under the provisions of this Act is paid or issued in substitution for that specific number or nominal amount of shares of the company.

(3) Trustees executors and administrators and all other holders in any representative or fiduciary capacity and persons under disability may and shall accept the sums of money or stock of the Board so paid or issued to them in pursuance of the provisions of this Act for the shares of the company held by them and may hold dispose of or otherwise deal with them in all respects as they might have held disposed of or otherwise dealt with the shares of the company for which they are substituted.

(4) In this section the word “ shares ” shall be construed as including debenture stock of the company.

Interim
payments on
account of
consideration.

20.—(1) If the price or consideration to be paid by the Board to the company for the transfer of their undertaking as provided for in subsection (2) of section 12 (Transfer of company's undertaking) of this Act has not been determined and paid before the expiry of a period of six months after the day of transfer the Board shall pay to the company by way of interim payment on account of the price or consideration a sum equal to one-half of the amount paid by the company in dividends on the share capital of the company and in interest on mortgages or debenture stock (before deduction of income tax) in respect of the year ended the thirty-first day of December nineteen hundred and fifty-nine and so on at the expiry of each succeeding period of six months after the day of transfer until the said price or consideration shall be determined and paid:

Provided that the directors of the company or the liquidator as the case may be may agree with the Board that no payment shall be made by the Board under the provisions of this section in respect of any period of six months if it appears to them or to him that the price or consideration will be paid to the company within a reasonably short time after the said period.

(2) The directors of the company or the liquidator as the case may be shall apply sums received by the company under the provisions of this section in payments to the holders of shares and mortgages and debenture stock in the proportion in which amounts were paid in dividends or interest thereon in respect of the year ended on the thirty-first day of December nineteen hundred and fifty-nine.

PART III
—cont.

21. The Board shall pay to each of the directors of the company who held office on the thirty-first day of December nineteen hundred and fifty-seven and who continues to hold office until the day of transfer a sum equal to seven times the amount of the director's fees (before deduction of income tax if any) paid to such director by the Company for the year ending on the thirty-first day of December nineteen hundred and fifty-seven. Compensation to directors.

22. The Board shall pay to the persons who held office as auditors of the company immediately before the day of transfer and who held that office on the first day of January nineteen hundred and fifty-seven as compensation for loss of office a sum equal to three times the amount of the fees (not including any amount recovered in addition thereto in respect of disbursements) received by them from the company as such auditors in respect of the year ending on the thirty-first day of December nineteen hundred and fifty-six. Compensation to auditors.

23. The Board shall pay interest at the rate of six pounds per centum per annum on the sum agreed or determined in pursuance of this Act to be the price or consideration to be paid for the transfer of the undertaking of the company from the day of transfer until the payment of such sum or if stock is issued in satisfaction thereof until the date as from which interest on such stock will be payable regard being had to any payments made on account under the provisions of section 20 (Interim payments on account of consideration) of this Act. Payment of interest.

24.—(1) Until the day of transfer an undertaking to be transferred in pursuance of this Act shall be carried on by the owners thereof (in this section referred to as "the owners") with due regard to the interests of the Board as prospective owners of the undertaking on and after the day of transfer and accordingly the owners may incur all such proper expenditure and liabilities as they shall deem necessary for carrying on the undertaking in the ordinary course of business: Exercise of powers until transfer.

Provided that except with the consent of the Board the owners shall not—

- (a) enter into any contract or incur any liability otherwise than in the ordinary course of carrying on the undertaking extending beyond the day of transfer or make any unnecessary or exceptional expenditure other than expenditure in respect of necessary legal engineering and accountancy charges incidental to the transfer of the undertaking;
- (b) incur any expenditure on capital account exceeding two hundred and fifty pounds for any one item unless such

PART III
—cont.

expenditure is incurred in pursuance of a statutory obligation or with the consent of the Minister;

- (c) in the case of the company increase the remuneration salaries or emoluments of directors auditors officers or servants beyond their usual remuneration salaries or emoluments at the rates operative on the twenty-seventh day of November nineteen hundred and fifty-seven or grant any pensions or retiring gratuities;
- (d) in the case of a council increase the remuneration salaries or emoluments of such of their officers or servants as in accordance with the provisions of section 29 (Transfer of officers) of this Act are to become officers or servants of the Board (otherwise than in accordance with any contract of service or scale of remuneration or at the instance of any wages board or joint industrial council or in pursuance of any compulsory arbitration award) beyond their usual remuneration salaries and emoluments at the rate operative on the twenty-seventh day of November nineteen hundred and fifty-seven;
- (e) vary any water rates rents or charges which were being demanded or taken by the owners at the date of the passing of this Act unless such variation is made with the consent of the Minister.

(2) The consent of the Board required by the proviso to the foregoing subsection shall not be withheld unreasonably and any question as to whether it is withheld unreasonably shall be determined by arbitration.

Continuance
of
proceedings.

25. Nothing in this Act shall release discharge or suspend any action arbitration or other proceeding which shall be pending by or against the company or any council whose undertaking is transferred by this Act in relation to that undertaking or to which the company or any such council in relation as aforesaid shall be a party on the day of transfer and any such action arbitration or other proceeding save so far as it relates to any tortious act of any servant of the company or any council may be maintained prosecuted or continued by or in favour of or against the Board.

Saving of
agreements
etc.

26. All sales conveyances grants assurances deeds contracts bonds and agreements affecting the undertaking of the company or any council whose undertaking is transferred by this Act and in force on the day of transfer shall on and from that day be as binding and of as full force in every respect against or in favour of the Board and may be enforced as fully and effectually as if instead of the company or council the Board had been a party thereto or bound thereby or entitled to the benefit thereof:

Provided that no sale conveyance grant assurance deed contract bond or agreement made or entered into by the company or any such council after the date of the passing of this Act shall be binding on or of any force or effect against or in favour of the Board unless it is made or entered into with the consent in writing of the Board or having been made or entered into without such consent it is subsequently ratified in writing by the Board.

27. All books and documents which if this Act had not been passed would have been evidence in respect of any matter for or against the company or a council whose undertaking is transferred by this Act shall in so far as they relate to their undertaking on and after the day of transfer be admitted in evidence in respect of the same or the like matter for or against the Board.

Books to
remain
evidence.

28.—(1) The Board before the day of transfer and thereafter the transferor shall be entitled to have access to and take copies of all registers books maps plans specifications engineering reports and other documents to be handed over to the Board so far as they may be necessary for the purpose of enabling the Board or the transferor to execute any of the provisions of this Act.

Inspection
etc. of
documents.

(2) The Board shall also be entitled at any time and for the like purpose to have access to and to take copies of all registers books maps plans specifications engineering reports and other documents not transferred by virtue of this Act which relate to any undertaking transferred to them by virtue of this Act.

(3) In this section the expression “transferor” means the council or company from whom an undertaking is transferred to the Board by virtue of this Act.

29. Every officer or servant who immediately before the first day of January nineteen hundred and sixty is in the service of the company or a council whose undertaking is transferred by this Act and who is wholly or mainly employed for the purposes of that undertaking shall on the day of transfer become an officer or servant of the Board and shall hold his office or situation by the same tenure and on the same conditions as if this Act had not been passed and while performing analogous duties to those which he was required to perform immediately before the first day of January nineteen hundred and sixty shall receive not less salary or remuneration than the salary or remuneration to which he would have been entitled if this Act had not been passed:

Transfer of
officers.

Provided that the Board shall not be required to take into their service any officer or servant whose contract of service with the company or the council was entered into after the twenty-seventh day of November nineteen hundred and fifty-seven unless such contract was entered into to replace an officer or servant who had left the service of the company or the council and contained

PART III
—cont.

exactly similar terms and conditions as the contract with that officer or servant or unless such contract was entered into with the consent of the Board.

Compensation
to existing
officers.

30. If in consequence of the passing of this Act or of anything done in pursuance of this Act any person who immediately before the appointed day was in the employment of the Board or of any undertakers whose undertaking or part of whose undertaking is transferred by this Act suffers direct pecuniary loss by reason of the determination of his employment or the diminution of his emoluments he shall unless provision for his compensation is made by or under any other enactment for the time being in force be entitled to receive compensation from the Board and for the purposes of this section section 44 of the Act of 1945 shall with any necessary modifications extend and apply as if this Act were an order made under the Act of 1945.

Super-
annuation
and pensions.

31.—(1) In this section the expression “transferred officer” means an officer or servant who—

(a) immediately before the first day of January nineteen hundred and sixty is in the service of the company or a council whose undertaking is transferred by this Act and who is wholly or mainly employed for the purposes of that undertaking; and

(b) on or within three months after the day of transfer becomes an officer or servant of the Board.

(2) Subject to the provisions of this section transferred officers shall be afforded by the Board superannuation rights not less favourable than those enjoyed by them immediately before the day of transfer.

(3) The Board shall in respect of transferred officers who are servants and who immediately before the day of transfer were enjoying superannuation rights under the Local Government Superannuation Acts 1937 to 1953 (hereafter in this section referred to as “the Superannuation Acts”) be deemed to have passed a statutory resolution as defined by section 40 of the Local Government Superannuation Act 1937 for the purposes of subsection (2) of section 3 of that Act and any such transferred officer shall be deemed to belong to a class or description of persons specified therein to be contributory employees of the Board.

(4) The Board shall as respects transferred officers who immediately before the day of transfer had any superannuation rights otherwise than under the Superannuation Acts or who before the day of transfer had no superannuation rights make a scheme to be approved by the Minister to provide the extent to which

previous employment with the undertaking from which such officer had been transferred shall be reckonable for the purpose of entitlement to or calculating the amount of any superannuation benefit (including a return of contributions) under the Superannuation Acts.

PART III
—cont.

(5) A transferred officer who immediately before the day of transfer had any superannuation rights otherwise than under the Superannuation Acts may by notice served on the Board within six months after the approval of a scheme made by the Board under subsection (4) of this section elect to retain those rights and in that case he shall not acquire any superannuation rights under the Superannuation Acts.

(6) For the purposes of subsection (4) of this section any fund maintained or moneys held for the purposes of satisfying any superannuation rights otherwise than under the Superannuation Acts in respect of transferred officers shall to such extent as it is not required to satisfy the rights of those officers who give the notice referred to in the last preceding subsection be applied towards securing rights in respect of the reckoning of the previous employment aforesaid of the transferred officers who had been participants in such fund before becoming transferred officers.

32. The provisions of the Second Schedule to this Act shall have effect in respect of the provisions contained in the enactments relating to the undertakers whose undertakings are by this Part of this Act transferred to the Board.

Existing
enactments
relating to
transferred
undertakings.

PART IV

BIRCHMOOR WATER COMMITTEE

33.—(1) As from the day of transfer there shall be a joint committee to be called “the Birchmoor Water Committee” for the purposes of managing the Birchmoor works and matters arising in connection therewith the supply of water in bulk therefrom to the Ampthill Council and the Board and the supply of water in accordance with the provisions of a conveyance and deed of grant made the thirtieth day of September nineteen hundred and fifty-eight between the trustees acting under the will of the most noble Francis Seventh Duke of Bedford of the first part the most noble Herbrant Eleventh Duke of Bedford of the second part and the Ampthill Council and the council of the rural district of Newport Pagnell of the third part.

Birchmoor
Water
Committee.

(2) The constitution and proceedings of the committee shall be as set out in the Third Schedule to this Act.

(3) The powers and duties of the Birchmoor Water Supply and Drainage Joint Committee as constituted at the day of transfer

PART IV
—cont.

shall cease and determine on the day of transfer so far as they relate to the management and maintenance of the Birchmoor works and the supply of water therefrom.

Supply from
Birchmoor
works.

34.—(1) Subject as provided in this section the Ampthill Council and the Board shall each be entitled to be supplied from the Birchmoor works with such quantity of water as they require and as may from time to time be available from the Birchmoor works.

(2) Subject to the provisions of subsection (4) of this section as from the day of transfer the Board shall not except with the consent of the Ampthill Council take from the Birchmoor works for supply in the rural district of Newport Pagnell or the limits of supply of the Board an average daily quantity in any week exceeding two-fifths of the maintainable yield of the Birchmoor pumping station and if after the day of transfer the Board take from the Birchmoor works an average daily quantity in any year greater than one-quarter of the maintainable yield of the Birchmoor pumping station the Board shall pay to the Ampthill Council such sum as may be agreed between the parties or in default of agreement determined by arbitration in respect of the loan charges borne by the Ampthill Council for capital expenditure incurred in connection with the Birchmoor works.

(3) Subject to the provisions of subsection (4) of this section as from the date of the expiration of a period of five years beginning on the day of transfer or such earlier date as the Minister may (on the application of the Ampthill Council) determine the Board shall not without the consent of the Ampthill Council take water from the Birchmoor works for supply in any area in the county of Bucks other than the parishes of Bow Brickhill Little Brickhill Walton Wavendon and Woburn Sands.

(4) The consent of the Ampthill Council to the taking of water from the Birchmoor works by the Board in accordance with the provisions of subsection (2) or subsection (3) of this section shall not be unreasonably withheld and any question as to whether any such consent is unreasonably withheld shall be determined by the Minister.

(5) In this section the expression “ maintainable yield of the Birchmoor pumping station ” means the yield of water which can be relied upon for supply from the pumping station comprised in the Birchmoor works as existing at the day of transfer being such yield as may be agreed between the Ampthill Council and the Board or in default of agreement by an engineer to be appointed by agreement between the parties or in default of such agreement by the President of the Institution of Civil Engineers.

35.—(1) The expenditure incurred by the committee in respect of any year shall be borne by the Ampthill Council and the Board in proportion to the quantity of water supplied to the Ampthill Council and the Board in that year.

PART IV
—cont.
Expenditure
of committee.

(2) The committee shall prepare estimates of their expenditure for each year and submit the same to the Ampthill Council and the Board for approval.

(3) When the Ampthill Council and the Board have approved the estimates there shall be paid to the committee in respect of the approved estimated expenditure of the committee—

- (a) by the Ampthill Council a sum equal to three-quarters of such expenditure; and
- (b) by the Board a sum equal to one-quarter of such expenditure;

such payments being made by four equal quarterly instalments payable on the fifteenth day of May the fifteenth day of August the fifteenth day of November and the fifteenth day of February in each year.

(4) The committee shall render to the Ampthill Council and to the Board—

- (a) a statement of accounts of their expenditure incurred annually made up to the thirty-first day of March in each year; and
- (b) a statement of the quantity of water supplied to the Ampthill Council and to the Board during the said period;

and the payments made by the Ampthill Council and the Board to the committee under subsection (3) of this section shall be adjusted in accordance with the provisions of subsection (1) of this section.

36.—(1) At any time after the date of the expiration of the period of five years beginning on the day of transfer or such earlier date as the Minister may (on the application of the Ampthill Council) determine the Minister may on the application of the Ampthill Council and the Board or either of such authorities make an order providing for the dissolution of the committee and for the transfer to any statutory water undertakers of the Birchmoor works or any part thereof.

Dissolution
of Birchmoor
Joint
Committee.

(2) Any order made under this section may contain such incidental consequential and supplementary provisions (including provisions as to compensation) as the Minister thinks necessary

PART IV
—cont.

or expedient and in particular but without prejudice to the generality of the foregoing provision may provide for the transfer of property and liabilities and for the amendment or repeal of any local enactment relating to any of the undertakers.

(3) The provisions of Part I of the First Schedule to the Act of 1945 shall apply to an order which the Minister is authorised to make under this section and the order shall in the circumstances specified in paragraph 8 of the said schedule be subject to special parliamentary procedure.

PART V

SUPPLY OF WATER ETC.

Power to
maintain etc.
transferred
works.

37.—(1) Notwithstanding the repeal of enactments by this Act on and after the day of transfer the Board may—

- (a) maintain repair renew alter enlarge improve extend and use the waterworks transferred to them by virtue of this Act and complete any such waterworks as have not been completed on the day of transfer;
- (b) exercise subject to the provisions of the enactment whereby the powers are conferred any powers which immediately before the appointed day are vested in or exercisable by the council or company from whom the undertaking is transferred for or in connection with the acquisition of land; and
- (c) take and use subject to the provisions of the enactment whereby the powers are conferred any water which can or may be intercepted by any of the said waterworks or which the undertakers might have taken or intercepted immediately before the day of transfer by any of the said waterworks if this Act had not been passed;

and the provisions of any enactment referred to in this subsection shall enure for the benefit of the Board and shall be construed as if a reference to the Board were substituted for any reference to any other water undertakers.

(2) The exercise of the powers of this section shall be subject to the provisions of this Act other than the provisions thereof whereby any enactments referred to in subsection (1) of this section are repealed.

For protection
of
Postmaster-
General.

38. Without prejudice to any provision for the protection or benefit of the Postmaster-General or his telegraphic lines contained in any enactment (including this Act) for the time being in force or in any such enactment as is referred to in paragraph (b) of

subsection (1) of section 37 (Power to maintain etc. transferred works) of this Act the following provisions shall apply in relation to the construction maintenance repair renewal alteration enlargement improvement extension or use by the Board of any works whether in the exercise of the powers conferred by paragraph (a) of the said subsection (1) or otherwise:—

- (1) The Board shall so construct maintain and use any electrical works or apparatus as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line:
- (2) Wires posts conductors or other apparatus shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 or be installed or worked in contravention of the provisions of the Wireless Telegraphy Act 1949.

39.—(1) The limits within which the Board may supply water shall on and from the day of transfer be extended so as to include the added limits. Extension of limits of supply.

(2) Subject to the provisions of this Act on and from the day of transfer—

- (a) the Board shall have and may exercise with reference to the added limits the like powers privileges and authorities for and in relation to the supply of water and the construction of works and be subject to all and the like duties and obligations in respect thereof as they have and are subject to under the Bucks Water Acts and Orders 1937 to 1957 with reference to the existing limits;
- (b) any byelaws and conditions of supply made by the Board shall extend and apply to the added limits in like manner as for the time being they apply to the existing limits and may on and from that day be enforced therein by the Board accordingly.
- (c) paragraph (1) of section 49 (Limits of supply) of the Banbury Corporation Act 1946 shall have effect as if sub-paragraph (b) was omitted therefrom:

Provided that nothing in any such byelaw or condition shall extend and apply to any existing water fitting or to any proposed fitting which at the date of transfer has been approved by a company or a council so long as such fitting complies with the requirements of any byelaw or condition made by a company or a council whose undertaking is transferred by this Act and in force immediately before the day of transfer.

PART V
—*cont.*

Cesser of
powers to
supply of
water within
limits of
transferred
undertakings.
Restriction
on supply
of water.

40. The powers of any statutory water undertakers (save in the case of a local authority their powers under Part IV of the Public Health Act 1936) with respect to the supply of water in any area which by this Act is included within the added limits shall cease and determine on the day of transfer.

41.—(1) The Board shall not without the consent of the Minister during any year supply for consumption or use within the limits of supply outside the Thames Catchment Area any water derived from sources situate within the Thames Catchment Area in excess in the aggregate of an average daily quantity of two-and-a-half million gallons.

(2) For the purpose of this section the expression “ the Thames Catchment Area ” means the catchment area of the river Thames above Teddington Lock as determined by the map approved by the Minister of Agriculture Fisheries and Food under section 5 of the Land Drainage Act 1930 and for the time being in force.

(3) Before applying to the Minister for a consent under subsection (1) of this section the Board shall give not less than twenty-eight days’ notice in writing to the Conservators of the River Thames and the Metropolitan Water Board.

(4) If within the said period of twenty-eight days notice of objection to the application is received by the Minister from either the Conservators of the River Thames or the Metropolitan Water Board and such objection is not withdrawn the Minister before giving such consent shall afford to the parties an opportunity of being heard by a person appointed by him for the purpose.

(5) The power conferred on the Minister by this section to give a consent shall include a power exercisable in the like manner and subject to the like conditions to vary or revoke any such consent.

(6) Nothing in this section shall affect the operation of the provisions of subsection (2) of section 110 (Contracts for supplying water in bulk) of the Act of 1937.

Supply of
water to
parish of
Warkworth.

42.—(1) Notwithstanding the foregoing provisions in this Part of this Act the Banbury Corporation may continue to supply water to any premises in the parish of Warkworth in the rural district of Brackley in the county of Northampton which they are supplying with water immediately before the day of transfer.

(2) On and after the day of transfer the Banbury Corporation shall be deemed to be supplying water to the premises referred to in subsection (1) of this section by virtue of an order made under subsection (1) of section 11 of the Act of 1945 and subsections (2) to (5) of the said section 11 shall apply accordingly.

(3) In this section "the Banbury Corporation" means the mayor aldermen and burgesses of the borough of Banbury.

PART V
—cont.

43. Notwithstanding anything in the Bucks Water Acts and Differential Orders 1937 to 1958 contained the following provisions shall apply and have effect in relation to the rates and charges to be charged by the Board in the areas hereinafter mentioned (that is to say):—

- (1) During the periods specified in the first column of the following table the rates and charges to be charged by the Board in the borough of High Wycombe for a supply of water for domestic purposes (otherwise than by meter) shall be less than the rates and charges for the time being charged for those purposes within the existing limits by the percentages specified in the second column of that table and the rates and charges to be charged by the Board in the said borough for a supply of water by meter shall be less than the rates and charges for the time being charged for those purposes within the existing limits by the percentages specified in the third column of the table:—

(1)	(2)	(3)
Period	Supply of water for domestic purposes	Supply of water by meter
Five years from the day of transfer	50 per centum	40 per centum
Five years from the first day of April nineteen hundred and sixty-five	25 per centum	20 per centum

Provided that on the application of the council of the borough of High Wycombe the Minister after considering any representations in reference thereto that may be made by the Board may by order extend the said period and vary the rates and charges that may be charged under this subsection in respect of the borough of High Wycombe:

- (2) During the periods hereinafter mentioned the rates and charges to be charged by the Board in that part of the rural district of Wycombe which immediately before the appointed day was supplied with water by the council of the said district or by the council of the borough of High Wycombe for a supply of water for domestic purposes or a supply of water by meter for domestic or other purposes shall be less than the rates and charges for the time being charged by the Board for a supply of

PART V
—cont.

- water for those purposes within the existing limits by the percentage hereinafter mentioned in respect of those periods respectively (that is to say):—
- (a) during the period of five years from the day of transfer ... 25 per centum
- (b) during the period of five years from the first day of April nineteen hundred and sixty-five ... 12½ per centum
- (3) During the periods hereinafter mentioned the rates and charges to be charged by the Board in the urban district of Marlow and in those parts of the rural districts of Cookham and Wycombe which immediately before the appointed day were within the limits for the supply of water of the company for a supply of water for domestic purposes (otherwise than by meter) shall be less than the rates and charges for the time being charged by the Board for a supply of water for those purposes within the existing limits by the percentage hereinafter mentioned in respect of those periods respectively (that is to say):—
- (a) during the period of five years from the day of transfer ... 20 per centum
- (b) during the period of five years from the first day of April nineteen hundred and sixty-five ... 10 per centum
- (4) During the periods hereinafter mentioned the rate charged by the Board in the borough of Brackley the urban districts of Bletchley Newport Pagnell and Wolverton and the rural districts of Brackley Newport Pagnell and Towcester for domestic purposes shall be more than the rate for the time being charged by the Board for a supply of water for those purposes within the existing limits by the percentages hereinafter mentioned in respect of those periods respectively (that is to say):—
- (a) during the period of five years from the day of transfer ... 20 per centum
- (b) during the period of five years from the first day of April nineteen hundred and sixty-five ... 10 per centum.

Deductions to be made by Board in respect of payments to certain councils.

44. In each of the years mentioned in the first column of the following table there shall be deducted from the amounts due from the Board under subsection (2) of section 8 (Transfer of local authorities' undertakings) of this Act—

- (1) in the case of the council of the rural district of Newport Pagnell the respective sums mentioned in the second column thereof;

(2) in the case of the council of the rural district of Brackley the respective sums mentioned in the third column thereof; and

(3) in the case of the council of the rural district of Towcester the respective sums mentioned in the fourth column thereof:—

Year Commencing 1st April	Sum to be deducted from amount due as aforesaid to Newport Pagnell Rural District Council	Sum to be deducted from amount due as aforesaid to Brackley Rural District Council	Sum to be deducted from amount due as aforesaid to Towcester Rural District Council
	£	£	£
1960	2,000	5,000	11,500
1961	2,000	5,000	11,500
1962	2,000	5,000	11,500
1963	2,000	5,000	11,500
1964	2,000	5,000	11,500
1965	1,667	4,166	9,583
1966	1,333	3,332	7,666
1967	1,000	2,499	5,749
1968	667	1,666	3,833
1969	333	833	1,916

45. Any contribution or contributions made by any county council under any enactment towards expenses incurred in relation to the undertaking of a council which is transferred by virtue of this Act shall on and after the day of transfer be made by such county council to the Board.

Payments to Board of certain contributions.

46.—(1) Subject to the provisions of this section the Third Schedule to the Act of 1945 (except the provisions thereof mentioned in Part I of the Fourth Schedule to this Act) shall apply to the undertaking of the Board and is hereby incorporated with each of the local Acts and this Act:

Incorporation of provisions of Third Schedule to Water Act 1945.

Provided that the provisions of the Third Schedule to the Act of 1945 specified in the first column of Part II of the Fourth Schedule to this Act as so applied and incorporated by this section shall have effect subject to the modifications specified in the second column of the said Part II.

(2) Any telephone or telegraph posts wires conductors or apparatus constructed laid down or erected under section 62 (Application of Waterworks Clauses Act 1847) of the Act of 1937 shall be deemed to have been laid or erected under section 5 of the Third Schedule to the Act of 1945 and any meters covers boxes or other apparatus affixed under section 78 (Meters in streets to measure water or detect waste) of the Act of 1937 shall be deemed to have been affixed under section 70 of the Third Schedule to the Act of 1945.

PART V
—cont.

Supply of
water where
consumer has
separate
supply.

47.—(1) Notwithstanding anything in the Third Schedule to the Act of 1945 or in any other enactment a person shall not be entitled to demand or continue to receive for the purposes of a standby supply from the Board a supply of water for any premises having a separate supply of water unless he has agreed to pay to the Board such minimum annual sum as will provide a reasonable return on the capital expenditure incurred by the Board in affording such standby supply and will cover other standing charges incurred by the Board in order to meet the possible maximum demand for those premises and a charge per thousand gallons not exceeding twice the rate per thousand gallons from time to time charged by the Board for supplies for purposes other than domestic purposes calculated on the quantity of water actually taken at those premises by way of a standby supply.

(2) Any questions arising under this section as to the sum and charge to be paid in respect of any supply to which this section applies shall in default of agreement be referred to the Minister and the Minister may determine it himself or if he thinks fit refer it for determination by an arbitrator appointed by him.

(3) In this section the expression “ standby supply ” in relation to any premises means a supply of water which is available for those premises but which is not ordinarily used for supplying those premises.

As to
premises
deemed to be
supplied with
water.

48. Where the owner or occupier of any premises within the limits of supply which are not supplied with water by the Board habitually obtains for use in those premises water which has been supplied to other premises by the Board he shall pay to the Board such charges as he would be liable to pay if the premises owned or occupied by him were supplied with water by the Board.

Special
readings of
water meters.

49. Where the Board take the reading of any meter fixed in any premises at the request and for the convenience of any consumer at any time other than that of the periodical meter reading they may recover from such consumer the expenses reasonably incurred by them in so doing.

Power to
recover
charge for
turning off
and turning
on in certain
cases.

50. Where the occupier of any house having a separate supply of water gives notice to the Board for the discontinuance of the supply to such house without giving up possession and within a period of nine months thereafter requires the supply to be reconnected the Board may make a reasonable charge for turning off and turning on the supply of water to such house and for disconnecting and reconnecting such supply and such charge may be recovered summarily as a civil debt.

Cutting off
communica-
tion pipes to
prevent waste
of water.

51. Where any house building or other premises are demolished or appear to the Board to be uninhabitable or in the case of premises other than a house remain unoccupied for a period of not less than one month and the Board have reason to think that

waste of water is occurring or is likely to occur they may notwithstanding anything in section 38 of the Act of 1945 cut off the communication pipe by which water was supplied to such house building or other premises:

Provided that—

- (a) in any case where the Board think that waste is likely to occur and for that reason propose to cut off a communication pipe by which water was supplied to any house building or other premises which appear to them to be uninhabitable or to premises which have remained unoccupied for the period aforesaid they shall give notice of their intention to do so to the owner of the house building or premises and if within one week of the receipt of such notice the owner satisfies the Board that reasonable steps are being taken to render habitable the house building or premises or that the premises will be occupied within a reasonable period (as the case may be) the Board shall not cut off the communication pipe but may take such other action as they may consider necessary to prevent waste of water;
- (b) the Board shall not exercise the powers of this section in relation to a communication pipe to which is connected a sprinkler system or other fire protection equipment dependent on pressure in a main without notice to the fire authority responsible under the Fire Services Act 1947 for the area in which the premises are situated.

52. The Board shall have power to reduce or remit the payment of any sum due to them in respect of the supply of water on account of the poverty of any person liable for the payment thereof. Remission of water rates on grounds of poverty.

53. Where in pursuance of section 37 of the Act of 1945 the owner of any land requires the Board to construct any works for the purpose of affording supply to any new buildings which he proposes to erect the Board instead of requiring the owner to give an undertaking to pay in respect of each year such sum as is provided in paragraph (a) of the proviso to subsection (1) of the said section 37 may agree with him for the payment by him to the Board of a sum in composition of any liability to make annual payments which he would incur if such an undertaking were given. Guarantees in respect of supplies for new buildings.

54.—(1) Notwithstanding anything in section 35 of the Act of 1945 if the Board so determine they shall not make any charge in respect of meter rent or meter hire. As to meter rents.

(2) Nothing in this section shall prejudice or affect any enactment or agreement from time to time authorising the Board to make a minimum charge in respect of any supply afforded by meter.

PART V

—cont.

Obstructions
to stopcocks
valves and
indicator
boards etc.

55. Where any person has—

- (1) covered over any stopcock or valve or has otherwise obstructed the means of access to any stopcock or valve; or
- (2) caused or permitted any stopcock or valve to be covered over or the access thereto to be obstructed; or
- (3) covered over damaged or removed any identification mark plate post or board installed by the Board for the location of any stopcock or valve or any support thereto; or
- (4) caused or permitted any such identification mark plate post or board or support to be covered over damaged or removed;

the expense incurred by the Board in uncovering the stopcock or valve or removing the obstruction or uncovering repairing or replacing the identification mark plate post board or support shall be paid to the Board by that person and may be recoverable by the Board as a simple contract debt in any court of competent jurisdiction or in the case of any amount not exceeding twenty pounds summarily as a civil debt.

Byelaws as to
testing etc. of
water fittings.

56.—(1) In addition to the powers of the Board to make byelaws under section 17 of the Act of 1945 the Board may in connection with the supply and use of water within the limits of supply for domestic purposes make byelaws—

(a) as to the testing and stamping of taps cocks valves ferrules flushing cisterns and other similar apparatus prior to the installation thereof;

(b) prescribing charges for such testing and stamping.

(2) The Board may also make byelaws as to the matters referred to in subsection (1) of this section in connection with the supply and use of water within the limits of supply for purposes other than domestic purposes.

(3) Subsections (3) and (4) of section 17 section 19 (other than paragraph (b) of subsection (6) thereof) and section 20 of the Act of 1945 shall apply to byelaws made under subsection (1) or subsection (2) of this section and such byelaws shall be deemed to be byelaws made under the said section 17.

(4) Any person who forges or counterfeits any stamp or mark used by the Board in pursuance of this section or uses or supplies any water fitting marked with any such stamp or mark knowing it to be forged or counterfeited shall be liable to a penalty not exceeding twenty pounds.

PART VI

FINANCE AND MISCELLANEOUS

Borrowing
powers.

57.—(1) The Board shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any

sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of that table and they shall repay all moneys so borrowed within such periods as they may determine not exceeding those respectively mentioned in the third column of the table:—

PART VI
—cont.

(1) Purpose	(2) Amount	(3) Period for repayment calculated from the dates of borrowing
(a) For payments in respect of the transfer to them of an undertaking under this Act (other than a payment to be made half-yearly or yearly) including payments under the following provisions of this Act (namely):— Subsection (5) of section 8 (Transfer of local authorities' undertakings); Subsection (2) of section 12 (Transfer of company's undertaking); Subsection (1) of section 16 (Further provisions as to transfer of company's undertaking); Section 21 (Compensation to directors); Section 22 (Compensation to auditors); and Section 30 (Compensation to existing officers)	The sum requisite	Forty years
(b) For the payment of any sum payable by them under this Act in respect of expendable stores	The sum requisite	Ten years
(c) For working capital	£100,000	Ten years
(d) For the payment of the costs charges and expenses of this Act	The sum requisite	Five years

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under subsection (1) of this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) The purposes for which the Board may borrow money in pursuance of the Act of 1933 shall include the provision of further working capital.

58. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in Saving for powers of Treasury.

PART VI
—cont.

compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Levying and
recovery of
water charges
by local
authorities.

59.—(1) The rates and charges which the Board are authorised to levy and take for and in connection with the supply of water (other than a supply of water in bulk) shall if and to the extent that the Board so require in relation to any county district be levied and recovered by the council thereof and accordingly that council may levy and recover such rates and charges as though they were payable to such council and not to the Board.

(2) Any such rates and charges may be collected by such council together with the general rate of the district and the same books and forms of demand note and receipt may be used for the general rate and the water rates and charges.

(3) Any rate or charge recoverable by a council under subsection (1) of this section shall be recoverable in the same manner and subject to the same provisions in respect of such recovery as the general rate of the district.

(4) The Board shall pay any such council who are for the time being required to levy and recover rates and charges as aforesaid such amount as may be agreed between the Board and that council (or failing agreement as may be determined by arbitration) as payment for the costs of the collection thereof.

Payment of
certain
expenses.

60.—(1) The Board may pay as establishment expenses under section 118 (Application of moneys received by Board) of the Act of 1937—

(a) the reasonable expenses incurred by the Board in connection with—

(i) the reception and entertainment by way of official courtesy of distinguished persons residing in or visiting the limits of supply or any work of the Board and persons representative of or connected with the public supply of water and the supply of information to any such persons;

(ii) visits by way of official courtesy by or on behalf of the Board and visits by members officers or employees of the Board to the works and premises of other undertakers;

(iii) the arrangement and conduct of ceremonies relating to or arising out of the statutory functions of the Board; and

(iv) visits to any works of the Board by way of instruction for employees of the Board;

including payments for travelling expenses and for expenses reasonably incurred by or on behalf of any member or officer of the Board in connection with any of the matters aforesaid;

(b) such allowance as the Board may think reasonable to the chairman of the Board for the purpose of enabling him to meet the expenses of his office.

(2) The provisions of section 267 of the Act of 1933 shall extend and apply to the Board and to the members and officers of the Board as if the Board were a local authority.

61. If since the twenty-seventh day of November nineteen hundred and fifty-seven any order has been made by the Minister under the Act of 1945 or the Water Act 1948 or the Water Act 1958 relating to any undertakers whose undertaking is transferred by virtue of this Act or relating to or affecting any such undertaking or if any such order is made before the day of transfer the Board shall be deemed to be referred to therein instead of the undertakers and the Minister may make such further order as he may deem necessary or expedient in consequence thereof for amending or revoking the order so made or to be made or amending the relevant provisions of this Act.

Transitory
amending
orders.

62. Sections 49 and 50 of the Act of 1945 shall have effect as if the references therein to that Act included a reference to this Act.

Inquiries and
revocation
and
variation
of orders.

63.—(1) In arbitrations under a provision of this Act mentioned in the first column of the following table the reference shall be to a single arbitrator to be appointed by agreement between the parties or in default of agreement by the person mentioned in the second column of that table on the application of any party after giving notice in writing to the other party or parties.

Arbitration.

Provision of Act	Person appointing arbitrator
Subsection (6) of section 8	The President of the Institute of Municipal Treasurers and Accountants.
Section 10	The Minister.
Subsection (2) of section 11	The President of the Institute of Municipal Treasurers and Accountants.
Subsection (2) of section 12	The President of the Law Society.
Subsection (3) of section 16	The President of the Law Society.
Subsection (8) of section 18	The President of the Law Society.
Subsection (2) of section 24	The President of the Law Society.
Subsection (2) of section 34	The President of the Institute of Municipal Treasurers and Accountants.
Subsection (4) of section 59	The President of the Institute of Municipal Treasurers and Accountants.

PART VI
—cont.

(2) An arbitrator agreed upon or appointed for the purposes of this Act may (if he thinks fit) be assisted by a financial assessor.

Repeal and
further
amendment of
enactments
relating to
Board.

64.—(1) The enactments specified in the first column of the Fifth Schedule to this Act are hereby repealed to the extent specified in the second column of the said Fifth Schedule.

(2) The provisions of the Waterworks Clauses Acts 1847 and 1863 (except sections 69 to 73 of the Waterworks Clauses Act 1847 and section 21 of the Waterworks Clauses Act 1863) shall cease to apply to the undertaking and to be incorporated with the local Acts.

(3) In subsection (1) of section 66 (Discharge of water into streams) of the Act of 1937 for the words “the Waterworks Clauses Act 1847 with respect to the breaking up of streets” there shall be substituted the words “Part VI (Breaking open streets etc.) of the Third Schedule to the Water Act 1945”.

(4) In subsection (1) of section 88 (Rates payable by owners of small houses) of the Act of 1937 after the words “premises supplied with water” there shall be inserted the words “have a net annual value not exceeding eighteen pounds or”.

(5) On and from the appointed day the provisions of the Act of 1937 specified in the first column of the Sixth Schedule to this Act shall have effect subject to the modifications mentioned in the second column of the said Sixth Schedule.

For protection
of British
Transport
Commission.

65. For the protection of the British Transport Commission (hereinafter referred to as “the commission”) the following provisions shall unless otherwise agreed in writing between the commission and the Board apply and have effect:—

(1) The repeal by this Act of the enactments referred to in the Seventh Schedule to this Act shall not prejudice or affect any rights powers duties or obligations conferred or imposed by those enactments (so far as the same are in force immediately before the appointed day) in relation to any works or apparatus constructed placed or laid before the appointed day across along over under or so as to affect any railway canal works lands or property of the commission:

(2) As from the appointed day the said rights powers duties and obligations shall be deemed to be the rights powers duties and obligations of the commission on the one hand and of the Board on the other hand.

Saving for
town and
country
planning.

66. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

67. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Board to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose. Crown rights.

68. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board and may be paid out of the revenues of the Board or out of the moneys to be borrowed by the Board under the powers of this Act. Costs of Act.

SCHEDULES

Section 4.

FIRST SCHEDULE

ADDED LIMITS

PART I

In the county of Buckingham—

The borough of High Wycombe;

The urban districts of Bletchley Marlow Newport Pagnell and Wolverton;

The rural district of Newport Pagnell;

So much of the urban district of Beaconsfield as prior to the first day of April nineteen hundred and thirty-four formed part of the parish of Wooburn;

So much of the rural district of Wycombe as is not comprised within the existing limits except so much of the said district as is within the limits of supply of the Rickmansworth and Uxbridge Valley Water Company.

PART II

In the county of Northants—

The borough of Brackley;

The rural districts of Brackley and Towcester.

PART III

In the county of Berks—

So much of the parish of Bisham in the rural district of Cookham as lies north-eastward of an imaginary line commencing in the private road leading along the foot of Winter Hill near Gibraltar at the point at which that road is intersected by the boundary between the said parish of Bisham and the parish of Cookham passing thence in a straight line in a south-westerly direction to the point on the north-western side of the Quarry Wood Road at which the north-eastern boundary of the property known as Beenham Lodge meets that road thence along the north-eastern northern north-western and south-western boundaries of the said property to the point on the north-western side of Quarry Wood Road at which the said south-western boundary meets that road thence in a straight line in a south-westerly direction to the north-westernmost corner of the field or enclosure situate between Park Wood and Bradnam Wood thence in a south-westerly direction along the south-eastern boundary of Bradnam Wood to the junction of that boundary with the eastern side of the road from Reading to Marlow and thence in a straight line in a south-westerly direction to a point in the northern boundary of Mungden Wood at which that boundary is intersected by the boundary between the said parish of Bisham and the parish of Hurley.

SECOND SCHEDULE

APPLICATION AMENDMENT AND REPEAL OF ENACTMENTS
RELATING TO TRANSFERRED UNDERTAKINGS

Section 32.

1. The repeal amendment and application of enactments by this schedule shall take effect subject to the foregoing provisions of this Act.

2. In the case of the company the enactments relating to the company shall remain in operation so long and so far as may be necessary for the purposes of the winding up of the company in pursuance of the provisions of this Act.

3. Subject to the provisions of this Act the following provisions shall cease to have effect on the day of transfer (namely):—

The High Wycombe Water Order 1874;

The Chepping Wycombe Water (Modification of Charges) Order 1923;

The Chepping Wycombe Corporation Act 1927—

Section 22 (Water limits);

Part IV (Water supply);

The Public Works Facilities Scheme (Chepping Wycombe Corporation) Confirmation Act 1931;

The Ministry of Health Provisional Order Confirmation (Chepping Wycombe) Act 1931;

The High Wycombe Water Order 1954;

The Marlow Water Act and Orders 1935 to 1958 except—

(a) section 22 (For the protection of the Conservators of the River Thames) of the Marlow Water Order 1889;

(b) section 14 (Undertakers not to abstract water from River Thames) of the Marlow Water Order 1902;

(c) section 15 (For protection of E. D. Park) of the Marlow Water Order 1902;

(d) section 3 (For protection of His Majesty's Commissioners of Works) of the Marlow Water (No. 2) Order 1902.

4. The said section 22 of the Marlow Water Order 1889 the said sections 14 and 15 of the Marlow Water Order 1902 and the said section 3 of the Marlow Water (No. 2) Order 1902 and the Marlow Water Company (Marlow Bridge) Order 1954 shall have effect as if the Board were therein referred to instead of the company and the undertakers therein mentioned and shall apply only within the areas within which the said provisions applied immediately before the day of transfer.

THIRD SCHEDULE

CONSTITUTION AND PROCEEDINGS OF THE COMMITTEE

1. The committee shall consist of sixteen members of whom ten shall be appointed annually by the Ampthill Council and six shall be appointed annually by the Board. Section 33.

3RD SCH.
—cont.

2. (a) The first members of the committee shall be appointed to hold office as from the day of transfer.

(b) The clerk of the Ampthill Council and the clerk shall forthwith after the appointment of any member of the committee by their authority notify the name and address and description of the member appointed—

(i) in the case of the first appointment of members to the clerk of the Birchmoor Water Supply and Drainage Joint Committee on or before the first day of March nineteen hundred and sixty; and

(ii) in the case of each subsequent appointment to the clerk of the committee not less than one month before the date on which the member is to come into office.

3. Upon a vacancy occurring in the membership of the committee by reason of the death or resignation of any member of the committee or by reason of any act or event in law whereby such member shall cease to be a member of such committee the Ampthill Council or the Board as the case may be shall appoint another member to fill the vacancy.

4. The committee shall appoint a chairman and vice-chairman (whose respective terms of office shall be one year) and the chairman or in his absence the vice-chairman shall preside at all meetings of the committee. In the absence from any meeting of both the chairman and vice-chairman a chairman shall be elected to preside at such meeting.

5. The committee shall appoint a clerk and an engineer and may appoint such other officers as they think fit.

6. Meetings of the committee shall be held at the Board Room Birchmoor Aspley Guise or such place as may from time to time be determined by the committee.

7. Abstracts of the reports of the proceedings of the committee (including reports of officers of the committee) shall be forwarded to each member of the committee and to the clerk of the Ampthill Council and the clerk as soon as practicable after every meeting of the committee.

8. The first meeting of the committee shall be convened by the clerk of the Ampthill Council so as to be held within twenty-eight days from the day of transfer.

9. The quorum at all meetings of the committee shall be five members thereof.

10. Sections 59 60 63 and 76 of the Act of 1933 (which provide respectively as to disqualification for office the validity of acts done by unqualified persons and the vacation of office by failure to attend meetings) and the provisions of paragraphs 1 to 5 of Part V of the Third Schedule to the Act of 1933 (which relate to decisions on questions arising the recording of names of members present at meetings the keeping of minutes the making of standing orders and the validity of proceedings) shall apply to the committee as if the committee were a local authority other than a parish council and as if for references therein to the Act of 1933 or any other enactment there were substituted references to this Act.

11. Any formal documents requiring execution on behalf of the committee shall after approval by resolution of the committee be signed by the chairman or vice-chairman thereof and the clerk of the committee or such member or members as the committee may by resolution direct.

3RD SCH.
—cont.

FOURTH SCHEDULE

Section 46.

PART I

PROVISIONS OF THE THIRD SCHEDULE TO ACT OF 1945
EXCEPTED FROM INCORPORATION

- Section 2 (Permissible limits of deviation);
- Section 7 (Power to acquire easements for underground works);
- Section 8 (Persons under disability may grant easements &c.);
- Section 10 (Provisions as to compensation water);
- Part XII (Water rates and charges);
- Part XV (Financial provisions applicable to water companies).

PART II

MODIFICATIONS OF PROVISIONS OF THE THIRD SCHEDULE
TO THE ACT OF 1945 APPLIED AND INCORPORATED

Provisions	Modifications
Section 12 (Map of underground works to be prepared and kept up to date)	In subsection (1) for the words “ within six months after the first occasion ” there shall be substituted the words “ within three years after the first occasion ”.
Section 19 (Power to lay mains)	The expression “ main ” shall be deemed to include discharge pipes or drains.
Section 39 (Duty of undertakers as respects constant supply and pressure)	For the words “ to the top of the top-most storey ” in subsection (1) there shall be substituted the words “ to an altitude of thirty-five feet above the ground level ”.
Section 60 (Power to require provision of cisterns in certain cases)	For subsection (1) there shall be substituted the following subsection:— “ (1) The undertakers may require that any house or building supplied by them shall be provided to the satisfaction of the undertakers with a cistern having a ball and stop-cock fitted on the pipe conveying water to it ”. In subsection (2) for the words “ his building ” there shall be substituted the words “ his house or building ” and for the words “ the building ” there shall be substituted the words “ the house or building ”.
Section 63 (Power to repair supply pipes)	In subsection (2) for the words “ may be settled by the court ” there shall be substituted the words “ may be settled by the water engineer of the undertakers or other officer duly authorised in that behalf by the undertakers ”.
Section 64 (Penalty for waste &c. of water by non-repair of water fittings)	The modifications specified in the schedule to the Local Government (Miscellaneous Provisions) Act 1953.

Section 64 (1).

FIFTH SCHEDULE

ENACTMENTS REPEALED

Enactment	Extent of repeal
The Act of 1937—	
Section 57 (Subsidiary and additional works)	The words “ and (b) execute for the purposes of the undertaking or in connection therewith any of the works and exercise any of the powers mentioned in or conferred by section 12 of the Waterworks Clauses Act 1847”.
Section 62 (Application of Waterworks Clauses Act 1847)	The whole section.
Section 63 (For protection of Postmaster-General and others)	The whole section.
Section 72 (For protection of transport undertakers)	The whole section.
Section 73 (For protection of highway and bridge authorities)	The whole section.
Section 74 (As to trunk roads &c.) ...	The whole section.
Section 75 (For protection of Grand Union Canal Company)	The whole section.
Section 76 (For protection of Chiltern Hills Spring Water Company)	The whole section.
Section 78 (Meters in streets to measure water or detect waste)	The whole section.
Section 82 (Amendment of section 35 of Waterworks Clauses Act 1847)	The whole section.
Section 83 (Limit of pressure) ...	The whole section.
Section 94 (Cisterns to be provided for high level supplies)	The whole section.
Section 95 (Extension of power to inspect premises)	The whole section.
Section 96 (Maintenance of common pipe)	The whole section.
Section 97 (Separate communication pipes may be required)	The whole section.
Section 98 (Power to Board to repair communication pipes)	The whole section.
Section 99 (Stop-cocks &c. to be fitted in communication pipes)	The whole section.
Section 100 (Power to sell meters) ...	The whole section.
Section 101 (Injuring meters &c.) ...	The whole section.
Section 102 (Notice to Board of connecting or disconnecting meters)	The whole section.
Section 103 (Notice of discontinuance) ...	The whole section.
Section 104 (Power to supply water fittings)	The whole section.
Section 105 (As to recovery summarily of sums due for fittings)	The whole section.
Section 106 (Penalty for interfering with valves &c.)	The whole section.

5TH SCH.
—cont.

Enactment	Extent of repeal
Section 107 (Penalty for closing valves and apparatus)	The whole section.
Section 108 (Power to remove meters and fittings)	The whole section.
Section 123 (Byelaws for preventing pollution of water)	The whole section.
Section 124 (Agreements as to collection of rates &c.)	The whole section.
Section 129 (As to application of Public Works Facilities Act 1930)	The whole section.
Section 133 (Evidence of appointments authority &c.)	The whole section.
Section 134 (Authentication and service of notices &c.)	The whole section.
Section 136 (Confirmation of byelaws) ...	The whole section.
Section 138 (Inquiries by Minister) ...	The whole section.
Section 139 (Judges not disqualified) ...	The whole section.
Section 142 (Recovery of penalties &c.)...	The whole section.
Bucks Water Order 1943—	
Section 7 (Board to connect communication pipes with mains)	The whole section.
Section 9 (Period of error in defective meters)	The whole section.
Bucks Water Board Act 1946—	
Section 25 (As to laying of pipes by Berkhamsted Gas Company and Board)	The whole section.
Section 26 (As to application of section 78 of Act of 1937)	The whole section.
Section 32 (Application of provisions of Act of 1937)	The words “ Section 129 (As to application of Public Works Facilities Act 1930)” the words “Section 138 (Inquiries by Minister); Section 139 (Judges not disqualified)” the words “Section 142 (Recovery of penalties &c.)” and the proviso.

SIXTH SCHEDULE

Section 64 (5).

PROVISIONS OF ACT OF 1937 MODIFIED FROM THE
APPOINTED DAY

Section	Modification
Section 4 (Interpretation) ...	In the definition of “ The product of a penny rate” for the words “ the Aylesbury District the Buckingham District the Wing District and the Winslow District” there shall be substituted the words “ the boroughs and districts of the constituent authorities

6TH SCH.
—cont.

Section	Modification
Section 4 (Interpretation)— <i>continued</i>	(or where part only of any such borough or district is within the limits of supply that part)".
Section 117 (Apportionment of deficiency in revenue of Board)	In paragraph (a) of subsection (1) for the words "the Aylesbury district the Buckingham district the Wing district and the Winslow district" there shall be substituted the words "their borough or district (or where part only of their borough or district is within the limits of supply the total rateable values of property comprised within that part)". In paragraph (b) of subsection (1) for the words "in proportion to the respective total rateable values above mentioned" there shall be substituted the words "in the proportion mentioned in paragraph (a) of this subsection". For paragraphs (b) and (c) of subsection (3) there shall be substituted the following:— "(b) by the constituent authorities other than the county council out of the general rate funds and general rate of their respective boroughs and districts". Subsections (6) and (7) shall be omitted.
Section 118 (Application of moneys received by Board)	In paragraph (b) of subsection (1) for the words "two thousand pounds" there shall be substituted the words "fifty thousand pounds".

Section 65.

SEVENTH SCHEDULE

ENACTMENTS REFERRED TO IN SECTION 65 (FOR PROTECTION OF
BRITISH TRANSPORT COMMISSION) OF THIS ACT

High Wycombe Water Order 1874—

Section 11 (For protection of the Great Western Railway Company);

Section 12 (In case of injury to Great Western Railway Company);

Section 13 (Saving rights of Great Western Railway Company);

Section 15 (As to pipes crossing the works of a railway or other company):

Marlow Water Order 1889—

Section 23 (For protection of the Great Western Railway Company);

Section 24 (As to pipes &c. crossing the works of a railway or other company):

Bucks Water Act 1937—

Section 72 (For protection of transport undertakers);

Section 75 (For protection of Grand Union Canal Company).

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Waterworks Clauses Act 1847	10 & 11 Vict. c. 17.
Waterworks Clauses Act 1863	26 & 27 Vict. c. 93.
Telegraph Act 1869	32 & 33 Vict. c. 73.
High Wycombe Water Order 1874 (con- firmed by the Gas and Water Orders Confirmation Act 1874)	37 & 38 Vict. c. lxxxvii.
Marlow Water Order 1889 (confirmed by the Gas and Water Orders Confirmation Act 1889)	52 & 53 Vict. c. cxix.
Marlow Water Order 1902 (confirmed by the Gas and Water Orders Confirmation (No. 1) Act 1902)	2 Edw. 7 c. ccxlviii.
Marlow Water (No. 2) Order 1902 (con- firmed by the Gas and Water Orders Confirmation (No. 3) Act 1902)	2 Edw. 7 c. ccxlix.
Supreme Court of Judicature (Consolida- tion) Act 1925	15 & 16 Geo. 5 c. 49.
Chepping Wycombe Corporation Act 1927	17 & 18 Geo. 5 c. lxxxiii.
Land Drainage Act 1930	20 & 21 Geo. 5 c. 44.
Public Works Facilities Act 1930 ...	20 & 21 Geo. 5 c. 50.
Public Works Facilities Scheme (Chepping Wycombe Corporation) Confirmation Act 1931	21 & 22 Geo. 5 c. lxix.
Ministry of Health Provisional Order Confirmation (Chepping Wycombe) Act 1931	21 & 22 Geo. 5 c. cxi.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Marlow Water Act 1935	25 & 26 Geo. 5 c. xxiv.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Local Government Superannuation Act 1937	1 Edw. 8 & 1 Geo. 6 c. 68.
Bucks Water Act 1937	1 Edw. 8 & 1 Geo. 6 c. xcv.
Bucks Water Order 1943 (confirmed by the Ministry of Health Provisional Order Confirmation (Bucks Water Board) Act 1943)	6 & 7 Geo. 6 c. ix.
Water Act 1945	8 & 9 Geo. 6 c. 42.
Bucks Water Board Act 1946	9 & 10 Geo. 6 c. xx.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58
Banbury Corporation Act 1946	9 & 10 Geo. 6 c. lxii.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6 c. 51.
Water Act 1948	11 & 12 Geo. 6 c. 22.
Wireless Telegraphy Act 1949	12 & 13 Geo. 6 c. 54.
Local Government (Miscellaneous Pro- visions) Act 1953	1 & 2 Eliz. 2 c. 26.
Water Act 1958	6 & 7 Eliz. 2 c. 67.

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